

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Mr. Justice Muhammad Ali Mazhar
Mr. Justice Aqeel Ahmed Abbasi
Mr. Justice Muhammad Shafi Siddiqui

C.P.L.A.Nos.1006-K to 1010-K/2025

Against the order dated 26.05.2025 passed by the
High Court of Sindh at Karachi, in C.Ps.No.S-864
to S-868 of 2023.

Ejaz Ahmed

...Petitioner
(In all cases)

Versus

Israr-ul-Ebad Khan (since deceased) through
L.Rs & others

...Respondents
(In all cases)

For the Petitioner (s): Mr. Muhammad Safdar Khokhar,
 ASC.
 Ms. Abida Parveen Channar, AOR.

For the Respondent(s): Syed Ahsan Imam Rizvi, AHC.
 Mr. K.A. Wahab, AOR.

Date of Hearing: 19.12.2025

Judgment

Muhammad Ali Mazhar, J.- The aforesaid Civil Petitions for leave to appeal are directed against the consolidated Order dated 26.05.2025, passed by the learned single judge of the High Court of Sindh at Karachi in C.Ps.No.S-864 to Const.P.No.S-868 of 2023, whereby the constitution petitions were allowed and the matter was remanded to the Rent Controller with a direction to implead the Respondent No.1 in the array of the opponents in rent cases, allow him to file written statements, and thereafter decide the rent cases afresh in accordance with law.

2. CMA No.1287-K/2025: Syed Ahsan Imam Rizvi, learned Advocate High Court, has applied for special permission to represent the legal heirs of the deceased Respondent No.1.

According to him, he is fully conversant with the facts of the case and assisted the main counsel in the High Court. At his request, we allowed him to proceed. Application is disposed of accordingly.

3. According to the chronicles of the case, the Respondent No.1, who was the Petitioner in the Constitution Petitions No.S-864 to S-868 of 2023 filed under Article 199 of the Constitution of Islamic of Pakistan, 1973, **(Constitution)** in the Sindh High Court, challenged the concurrent findings recorded by the two Courts below, whereby his application moved under Order 1 Rule 10, Civil Procedure Code **(CPC)** to implead as proper and necessary party was dismissed. In fact, the ejectment applications were filed by the present Petitioner for eviction of tenants from four shops and one godown, located on Industrial Plot No.WSA-2, Block-14, KDA Scheme No.16, Federal 'B' Area, Karachi. The Respondent No.1 applied for his impleadment being a co-owner of the demised premises which was purchased by his deceased mother, Mst. Zubaida Khatoon. According to him, the property remained in his possession and had let out the same to different tenants. It was further alleged that the property in question was an inherited property, which was sold out on the basis of relinquishment deed by means of fraud and coercion. The learned High Court in the impugned consolidated order observed that the subject property was owned by the mother of the Respondent No.1, who passed away on 26.01.1997 and after her death, the Petitioner/Respondent No.1 and other legal heirs became co-owners of the property but through fraudulent means and coercion, the property was sold out by means of a conveyance deed, which is already under challenge in the suits pending adjudication before the competent Court. On the other hand, the Petitioner before us in the instant case pleaded that he purchased the shops from the actual owner of the premises through a registered conveyance deed whereas the Respondent No.1 had no nexus with the rented premises. The learned High Court in the impugned order observed that the claim of the Petitioner/Respondent No.1 has been substantiated through admission made by the learned counsel for the Respondent No.3

in the High Court that he was receiving rent from two tenants and while setting aside the concurrent findings of the Courts below, the learned High Court directed the learned Rent Controller to implead the Respondent No.1/Petitioner in the array of the opponents, allow him to file written statements and decide the ejectment applications afresh in accordance with law.

4. The learned counsel for the Petitioner argued that the learned High Court failed to appreciate the documents available on record while setting aside the concurrent findings recorded by the Courts below. It was further contended that in the impugned order, certain findings have been recorded against the Petitioner which may seriously prejudice his case before the rent controller. He further contended that the scope of constitutional jurisdiction under Article 199 of the Constitution is limited to correcting jurisdictional errors, procedural irregularities and violations of law, but not to reappreciate evidence or substitute findings of fact rendered by the two competent forums below. It was further averred that title disputes fall outside the purview of Sindh Rented Premises Ordinance, 1979, therefore, the Respondent No.1 was neither a necessary nor a proper party to the rent proceedings. On the last date of hearing, the learned counsel for the Petitioner informed us that the Respondent No.1 (Israr-ul-Ebad Khan), died on 04.11.2024, a fact which was not brought into the knowledge of the High Court and his counsel, without intimation, appeared in the High Court till 26.05.2025 when the constitution petitions of a dead petitioner were allowed.

5. The learned counsel representing the legal heirs of Israr-ul-Ebad candidly conceded that Israr-ul-Ebad (deceased Respondent No.1 in the present case and Petitioner in the High Court) died on 04.11.2024, while the Constitution Petitions were allowed by the High Court on 26.05.2025. He further admits that the order was rendered by the High Court long after the death of the Petitioner/Respondent No.1. No justification was shown by him as to why no intimation of death was given to the High Court, or why no application for impleading the legal heirs was filed and

how the advocate appeared after the death of his client when the vakalatnama/power of attorney ceased to have any effect? Instead of replying to this query, the learned counsel simply took the shelter of Order 22, Rule 3 of the CPC and responded that even in the case of no application or intimation, the Court could proceed and pass the order notwithstanding the death of the petitioner, which under the precise aforesaid rule, would have the same force and effect as if it was pronounced before the death took place.

6. Heard the arguments. To start with, let us first take up the niceties of Order III, Rule 4 of the CPC, germane to “Recognized Agents & Pleadings”, which is reproduced as under: -

4. Appointment of pleader. (1) No pleader shall act for any person in any Court, unless he has been appointed for the purpose by such person by a document in writing signed by such person or by his recognized agent or by some other person duly authorized by or under a power-of-attorney to make such appointment.

(2) Every such appointment shall be filed in Court and shall be deemed to be in force until determined with the leave of the Court by a writing signed by the client or the pleader, as the case may be, and filed in Court, or **until the client or the pleader dies**, or until all proceedings in the suit are ended so far as regards the client. [Emphasis supplied]

(3) For the purposes of sub-rule (2) an application for review of judgment, an application under section 144 or section 152 of this Code, any appeal from any decree or order in the suit and any application or act for the purpose of obtaining copies of documents or return of documents produced or filed in the suit or of obtaining refund of monies paid into the Court in connection with the suit shall be deemed to be proceedings in the suit.

(4) The High Court may, by general order, direct that, where the person by whom a pleader is appointed is unable to write his name, his mark upon the document appointing the pleader shall be attested by such person and in such manner as may be specified by the order.

(5) No pleader who has been engaged for the purpose of pleading only shall plead on behalf of any party, unless he has filed in Court a memorandum of appearance signed by himself and stating

(a) the names of the parties to the suit,

(b) the name of the party for whom he appears, and

(c) the name of the person by whom he is authorized to appear:

Provided that nothing in this sub-rule shall apply to any pleader engaged to plead on behalf of any party by any other pleader who has been duly appointed to act in Court on behalf of such party”.

7. It is an admitted position that the Respondent No.1/Petitioner had died on 04.11.2024 but no intimation of his death was conveyed to the learned High Court, hence the impugned order was made on 26.05.2025 without impleading the legal heirs and a dead person was directed to be impleaded in the rent cases. It was an onerous obligation of the advocate to inform the Court, but he maintained silence and the matter was decided without the presence of legal heirs. The relationship between an advocate and his client in general is ruminated on as principal and agent. By signing a vakalatnama, the client coincides and comes to an agreement to be bound by the actions taken by his advocate in the course of the proceedings. The elementary objective is to ensure smooth functioning of the judicial process and also evade doubtfulness vis-à-vis the advocate's authority. However, the authority of an advocate as a recognized agent of his client immediately ceases on his death; like a power of attorney, the agency comes to an end with the death of the principal.

8. On the death of the principal/client, it is quite obvious that in such eventuality, the advocate cannot carry on his professional duties without instructions, therefore, it is the professional duty of every advocate to intimate the Court regarding the death of his client forthwith so that the legal heirs may be impleaded and engage either the same advocate by executing a fresh vakalatnama, or appoint a new advocate of their choice. The advocate cannot continue the case without proper authorization, therefore, the legal representatives of the deceased client must be brought on record. The Courts, while adhering to and applying the legal maxim "*nullus commodum capere potest de injuria sua proprio*" (no one can profit from their own wrong), must not allow any advocate to benefit from suppressing the death of his client deliberately or by design. An expired vakalatnama/power of attorney has not only legal ramifications but ethical aftermaths also. Non-disclosure of death of a client not only amounts to concealment, but it is also against the canons of practice and professional etiquettes. In such situations, if the explanation of advocate is found unreasonable, the Court may also call

upon/refer the matter to the concerned Bar Council to initiate misconduct proceedings on account of concealing/suppressing the death of his client and appearing in Court despite automatic termination of his vakalatnama/power of attorney.

9. Even in the Code of Civil Procedure 1908 of India, specifically Rule 10A under Order XXII inserted by the Act 104 of 1976, it is expounded as duty that wherever a pleader appearing for a party to the suit comes to know of the death of that party, he shall inform the Court about it, and the Court shall thereupon give notice of such death to the other party, and, for this purpose, the contract between the pleader and the deceased party shall be deemed to subsist. Seemingly, this rule was introduced to cast a mandatory duty on a lawyer/pleader to intimate the court for allowing substitution of legal heirs for prevention of the suit not to be abated without proper representation or deprived of substantial justice or even preventing parties from gaining advantage from their own counsel's suppression of death.

10. Indisputably, if the deceased petitioner/plaintiff had a valid cause of action and the right to sue survived, then upon his death the right to continue legal proceedings devolved upon his legal representatives or heirs. They might intercede and pursue the lawsuit/constitutional petition from the stage it had reached, for determination of the original controversy/dispute, in their own fine sense of judgment. Fundamentally, it is a procedural formality to take the place of a deceased party by their lawful successors to ensure justice in the deceased's rights and/or liabilities by means of continuation of the legal proceedings and protecting their inherited interests in the subject matter and also satisfy the requirements of a fair trial. As a matter of fact, the legal heirs are impleaded to ensure that all proper and necessary parties interested in the outcome are appropriately represented, allowed to participate and afforded ample opportunity of pleading and right of audience in order to satisfy the principles of natural justice so that the final judgment should be binding on all the parties, including the successors in interest.

11. The necessity of impleadment of legal heirs in the event of the death of plaintiff or defendant "when right to sue survives" has much significance. Under Order VII, Rule 26, CPC, while referring to Rule 3 of Order XXII CPC, it is clearly provided that the plaint shall be accompanied by a statement giving the names and addresses of the persons who, in the event of the death of the plaintiff, may be made a party as his legal representatives and the name and address of the person who, in the event of the death of the plaintiff, shall intimate such fact to the Court, furnish the Court with the names, particulars and addresses of the legal representatives of the plaintiff and make an application for the legal representatives to be made a party. In tandem, Order VIII, Rule 13 accentuates with the reference of Rule 4 of Order XXII CPC, that the written statement shall be accompanied by a statement giving the names and addresses of the persons who, in the event of the death of the defendant, may be made a party as his legal representatives and the name and address of the person, who in the event of the death of the defendant, shall intimate such fact to the Court, furnish the Court with the names, particulars and addresses of the legal representatives of the defendant and make an application for the legal representatives to be made a party.

12. According to Article 176 of the Limitation Act, 1908, a period of 90 days is provided to apply for impleadment of legal representatives of the deceased plaintiff or a deceased appellant as party and time begins to run from the date of death of the deceased plaintiff or appellant. Whereas Article 177 relates to the impleadment of legal representatives of the deceased defendant or deceased respondent for which too, 90 days period is provided to apply for becoming party to lis and in this scenario also, time begins to run from the date of death of the deceased defendant or respondent. However, we are sanguine that there is no hard and fast or rigid rule that in the case of delay in making an application after expiry of time allowed in the aforesaid Articles, the legal heirs shall be deprived of their right or shall be debarred from impleading or from stepping into the shoes of their

predecessor in interest to fight and safeguard their interest, but it is for the Court to mull over the delay/sufficient cause in order to advance case of justice solicitously and conscientiously on the notion that the right of inheritance/impleadment of legal heirs cannot be compromised at the peril or barrier of technicalities if the right to sue and right to defend survives.

13. According to Order XII, Rule 1 of the CPC, it is clearly provided that the death of plaintiff or defendant shall not cause the suit to abate if the right to sue survives. In one fell swoop, Rule 2 of Order XXII CPC, explains the procedure in simple terms that *“where there are more plaintiffs or defendants than one, and any of them dies, and where the right to sue survives to the surviving plaintiffs or plaintiffs alone, or against the surviving defendant or defendants alone, the Court shall cause an entry to that effect to be made on the record, and the suit shall proceed at the instance of the surviving plaintiff, or plaintiffs, or against the surviving defendant or defendants”*. The keywords “right to sue survives”, as a matter of fact embedded in the renowned Latin maxim *“Actio personalis moritur cum persona”* (personal action dies with the person). In juxtaposition, if we look at the disposition of Rule 3 (1) of Order XXII CPC, it propounds a procedure where one of two or more plaintiffs die and the right to sue does not survive to the surviving plaintiffs alone or on receipt of an intimation of the death of such plaintiff from the person nominated by him for that purpose under Rule 26, Order VII, or a sole plaintiff or sole surviving plaintiff dies and the right to sue survives, the Court, on an application made on that behalf, shall cause the legal representative of the deceased plaintiff to be made a party and shall proceed with the suit. Similar treatment is meted in the event of death of one or more defendants in Rule 4 (1) which emphasizes that where one of two or more defendants dies and the right to sue does not survive against the surviving defendant or defendants alone or on receipt of an intimation of the death of such defendant from the person nominated by him for that purpose under Rule 13, Order VIII or a sole defendant or sole surviving defendant dies and the right to sue survives the

Court on an application made on that behalf, shall cause the legal representative of the deceased defendant to be made a party and shall proceed with the suit.

14. Quintessentially, the phraseology of Order 22, Rule 3 (2) CPC in its original form was “(2) Where within the time limited by law no application is made under sub-rule (1), the suit shall abate so far as the deceased plaintiff is concerned, and, on the application of the defendant, the Court may award to him the cost which he may have incurred in defending the suit, to be recovered from the estate of the deceased plaintiff”. By the same token, Rule 4 (3) of Order XXII CPC was “(3) Where within the time limited by law no application is made under sub-rule (1), the suit shall abate as against the deceased defendant.”. However, on promulgation of “The Law Reforms Ordinance, 1972” (Ordinance No. XII of 1972), erstwhile sub-rule (2) of Rule 3 and sub-rule (3) of Rule 4 of Order XXII of CPC were substituted to avoid direct abatement of the lawsuits/legal proceedings. The present manifestation of substituted provisions is as under: -

Sub-rule (2) Rule 3 of Order XXII CPC

“(2) Where within the time allowed by law no application is made or intimation is given under sub-rule (1), the Court may proceed with the suit, and any order made or judgment pronounced in such suit shall, notwithstanding the death of such plaintiff, have the same force and effect as if it had been made or pronounced before the death took place.”

Sub-rule (3) Rule 4 of Order XXII CPC

“(3) When within the time limited by law no application is made or intimation is given under sub-rule (1) the Court may proceed with the suit and any order made or judgment pronounced in such suit shall notwithstanding the death of such defendant have the same force and effect as if it had been pronounced before the death took place.”

15. It is also quite significant to note that under the rigors of Rule 6 of Order XXII CPC, a different scenario has also been explained that whether the cause of action survives or not, there shall be no abatement by reason of the death of either party between the conclusion of the hearing and the pronouncing of the judgment, but judgment may in such a case be pronounced notwithstanding death and shall have the same force and effect as if it had been

pronounced before the death took place. While Rule 11 of the same order is sort of an explanation that in the application of Order XXII CPC to appeals, the word "plaintiff" shall be held to include an appellant and the word "defendant" a respondent and the word "suit" an appeal. Last but not least, Rule 12 shed light on a very important aspect that the Rules 3, 4 and 8 of the same Order shall not apply to proceedings in execution of a decree or order.

16. If we look into the nitty-gritties of substitution made under Rules 3 and 4 of the Order XXII CPC by dint of Law Reforms Ordinance 1972, though direct abatement has been subsided and now in view of the present provisions, if no application is filed within the time allowed or no intimation is given, the Court may proceed with the suit and any order made or judgment pronounced in such suit shall, notwithstanding the death of such plaintiff or defendant have the same force and effect as if it had been pronounced before the death took place. However, the in-built obligation under Order III, Rule 4 of the CPC, neither absolves the advocate representing the parties from the onerous duty to intimate the Court of the death of his client forthwith, nor can it be allowed or presumed as mundane practice by an advocate that, notwithstanding the death of the client, the court should proceed on expired vakalatnama/power of attorney and decide the lis on the understanding that the decision will have the same force and effect as if it had been pronounced before the death took place. If the aforesaid provision is interpreted in this fashion, then the whole purpose of impleadment of legal heirs as encapsulated under Order XXII of the CPC will become redundant and dispensable. Without a doubt, the Court may proceed if no intimation of death is given but at the same time, if the death is concealed intentionally or unintentionally or due to the lack of knowledge of the advocate, how could the Court come to know by its own motion without disclosure? In case, the plaintiff or defendant was appearing in person, then unequivocally, the legal heirs may attend and inform the Court, but if they are being represented by an advocate, then it is also his professional duty

to inform the Court for the reasons that the vakalatnama/power of attorney is terminated and ceases to have any effect on the death of the client but in this case, despite death, the learned advocate continued to appear and the matter was finally decided in favour of the dead Petitioner who was directed to be impleaded in the rent cases and if at this stage, the rent controller is informed that the death had taken place much before the order of the High Court, then there are other repercussions such as whether the legal heirs who were not disclosed to the High Court and were not impleaded in the constitution petitions can be made party directly in the ejectment proceedings, which were resuscitated on account of the remand order of the High Court.

17. As a result of the above discussion, these Civil Petition are converted into appeals and allowed. As a consequence thereof, the impugned consolidated Order dated 26.05.2025 passed by the High Court is set aside and matter is remanded; the legal heirs of the deceased Respondent No.1 may file proper applications in the High Court for their impleadment in C.Ps.No.S-864 to S-868 of 2023, thereafter, the High Court shall decide the aforesaid constitution petitions afresh in accordance with law after providing opportunity of hearing to the parties.

Judge

Judge

Judge

Karachi
19.12.202
Khalid
Approved for reporting.